

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion
Hon. Brian L. McCabe
Courtroom 8
627 W. 21st Street, Merced

Friday, March 17, 2023
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. **Parties who contest the tentative ruling or wish to appear at a hearing must contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing.**

IMPORTANT: Court Reporters will NOT be provided; parties wanting a hearing transcript must make their own arrangements.

Case No.	Title / Description
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19CV-03393	Dale Lacroix, et al. v. Foster Farms, LLC, et al.
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Order to Show Cause Re: Dismissal – Status of Settlement/Compliance

Appearance required. Remote appearances are encouraged. Parties who wish to appear remotely should contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. Please be prepared to set dates for a mandatory settlement conference, and potential trial dates. The Court notes Plaintiffs' Counsel filed a declaration regarding the status on March 2, 2023, proposing alternative options for the 40% of unclaimed funds. Appear to discuss the alternative options.

21CV-01365	Arnoldo Padilla v. Ivan Saucedo
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Motion to Quash Defendant's Subpoenas for Plaintiff's Academic Records from Gustine Unified School District

Defendant's Motion to Quash Defendant's Subpoenas for Plaintiff's Academic Records from Gustine Unified School District is GRANTED IN PART AND DENIED IN PART. The Motion to Quash is DENIED and Gustine Unified School District is ordered to produce documents depicting the information responsive to Form Interrogatory 2.7, i.e. (1) the

name and address of the school attended, (2) the dates attended, (3) the highest grade level completed, (4) the degrees received. In all other aspects, the motion to quash is **GRANTED** and Gustine Unified School District is ordered not to provide any document other than those identified above.

22CV-02406 Carmen Nunez v. Juliana Velasquez

Motion to be Relieved as Counsel

The unopposed motion to be relieved as counsel filed on February 10, 2023, by attorney Sawsan Mansour and BD&J, PC is GRANTED, effective upon the filing of proof of service of the order granting this motion on the client. The Court will sign the updated order lodged with the court on February 27, 2023.

22CV-03360 Cintia Lopez, et al. v. Manuel Silva

Motion to be Relieved as Counsel for Plaintiff Cintia Lopez

The unopposed motion to be relieved as counsel for Plaintiff Cintia Lopez, filed on February 10, 2023, by attorney Sasha Farahi and BD&J, PC is GRANTED, effective upon the filing of proof of service of the order granting this motion on the client. The Court will sign the order lodged with the court on February 10, 2023.

Motion to be Relieved as Counsel for Plaintiff Jennie Padilla

The unopposed motion to be relieved as counsel for Plaintiff Jennie Padilla, filed on February 10, 2023, by attorney Sasha Farahi and BD&J, PC is GRANTED, effective upon the filing of proof of service of the order granting this motion on the client. The Court will sign the order lodged with the court on February 10, 2023.

22CV-04015 Petition of Alexis Moreno, et al.

Order to Show Cause Re: Name Change

Appearance required. Remote appearances are encouraged. Parties who wish to appear remotely should contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. The Court notes that proof of publication was filed on February 21, 2023. Appear to address concerns regarding the planned adoption mentioned in the petition.

23CV-00601 Spring Lawrence v. Frank Ormond

Order to Show Cause Re: Restraining Order

Appearance required. Remote appearances are encouraged. Parties who wish to appear remotely should contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. The Court notes that no proof of service has been filed showing that respondent was served with the Notice of Hearing, the Request for